

General Data Protection Regulation

AIESEC in Pakistan

National Compendium

1. Data Protection

1.1. Basic Definitions

1.1.1.1. Personal data means any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person.

1.1.2. Processing means any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organisation, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction.

1.1.3. Sensitive personal data includes personal data about a person's racial or ethnic origin, political opinions, religious or philosophical beliefs, trade union membership, genetic, biometric, physical or mental health condition, sexual orientation or sexual life. It can also include data about criminal offences or convictions. Sensitive personal data can only be processed under strict conditions, including with the consent of the individual.

1.1.4. The terms mentioned above and any other expressions must respect the definitions given by the General Data Protection Regulation and the appropriate local/national laws.

1.2. Considerations

1.2.1. AIESEC in Pakistan processes personal data about members/employees, volunteers, applicants, alumni and customers, being committed to protecting and respecting the privacy of every stakeholder.

1.2.2. Personal data must be processed lawfully and appropriately and must be respected by AIESEC in Pakistan

1.3. Data Protection Officer

1.3.1. AIESEC in Pakistan must have a responsible for data protection, which shall be appointed at the start of every term.

1.3.2 The data protection responsible must be selected within the National office and in the Local executive boards as well.

1.3.2. The selection of the responsible for data protection must take into consideration the following criteria:

1.3.2.1. His/Her duties must be compatible with the duties of a Data Protection Officer;

1.3.2.2. His/Her duties must not lead to a conflict of interests;

1.3.2.3. He/She shall be designated on the basis of professional qualities and, in particular, expert knowledge of data protection law and practices and the ability to fulfil the tasks: this should be proportionate to the type of processing carried out by the entity.

1.3.3. The duties of the Data Protection Officer are:

1.3.3.1. To inform and advise the entity and the members/employees who carry out the processing of their obligations pursuant to the General Data Protection Regulation and to other data protection laws;

1.3.3.2. To monitor compliance with the General Data Protection Regulation, with other data protection laws and with the policies of the entity in relation to the protection of personal data, including the assignment of responsibilities, awareness-raising and training of staff involved in processing operations, and the related audits;

1.3.3.3. To provide advice where requested as regards the data protection impact assessment and monitor its performance;

1.3.3.4. To cooperate with the supervisory authority;

1.3.3.5. To act as the contact point for the supervisory authority on issues relating to processing, including the prior consultation referred to in the Article 36 of the General Data Protection Regulation, and to consult, where appropriate, with regard to any other matter.

1.3.4. The Data Protection Officer shall be bound by secrecy or confidentiality concerning the performance of his/her tasks.

1.3.5. The contact details of the Data Protection Officer should be published, shared with the relevant supervisory authority and communicated to individuals.

1.3.6. The responsible for data protection can be a member of the staff of AIESEC in Pakistan. AIESEC in Pakistan may also contract out the role of Data Protection Officer externally.

1.4. Data Protection Principles

1.4.1. Personal data must be:

X.4.1.1. processed lawfully, fairly and in a transparent manner in relation to the data subject;

1.4.1.2. collected for specified, explicit and legitimate purposes and not further processed in a manner that is incompatible with those purposes;

1.4.1.3. adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed;

1.4.1.4. accurate, and where necessary, kept up-to-date;

1.4.1.5. kept in a form which permits identification of data subjects for no longer than is necessary for the purposes for which the personal data are processed;

1.4.1.6. processed in a manner that ensures appropriate security of the personal data, including protection against unauthorised or unlawful processing and against accidental loss, destruction or damage, using appropriate technical or organisational measures.

1.4.2. AIESEC in Pakistan must make reasonable steps so as to guarantee the principles mentioned in "X.4.1.", including setting retention policies and internal procedures for deletion of data.

1.4.3. Whenever consent is the lawful basis for processing, it must be AIESEC in Pakistan must:

1.4.3.1. make sure that it was granted in a free, specific, unambiguous, explicit and informed manner. The request for consent shall be presented in a manner which is clearly distinguishable from the other matters, in an intelligible and easily accessible form, using clear and plain language;

1.4.3.2. be able to demonstrate that the data subject has consented to the processing of his/her personal data;

1.4.3.3. guarantee that the data subject will have the right to withdraw his/her consent at any time without affecting the lawfulness of processing based on consent before its withdrawal. Prior to giving consent, the data subject must be informed thereof. AIESEC in Pakistan must also guarantee that it is as easy to withdraw as to give consent.

1.5. Information to Individuals

1.5.1. Whenever personal data relating to an individual is collected, AIESEC in Pakistan must inform the individual about:

1.5.1.1. The purpose or purposes for which AIESEC in Pakistan intends to process that personal data, as well as the legal basis for the processing;

1.5.1.2. Where AIESEC in Pakistan relies upon the legitimate interests of the business to process personal data, the legitimate interests pursued;

1.5.1.3. The recipients or categories of recipients of the personal data, if any;

1.5.1.4. The fact that AIESEC in Pakistan intends to transfer personal data to a non-EU/EEA country or international organisation and the appropriate and suitable safeguards in place;

1.5.1.5. The existence of each of the rights of the data subject and an explanation about each of them, paying special attention to the right to request from AIESEC in Pakistan (*considering that it is the "data controller") access to and rectification or erasure of personal data or restriction of processing as well as the right to object to processing and the right to data portability.

1.5.1.6. Information about the period that the information will be stored or the criteria used to determine that period;

1.5.1.7. The right to withdraw consent at any time (if consent was given) without affecting the lawfulness of the processing before the consent was withdrawn;

1.5.1.8. The right to lodge a complaint with the appropriate supervisory authority;

1.5.1.9. The existence of automated decision-making (including profiling) and meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the individual;

1.5.1.10. The identity and contact details of AIESEC in Pakistan (*considering that it is the controller), of its Data Protection Officer and, where applicable, of its representative.

1.5.2. In case the information was collected directly from the individual, he/she must be informed about the points mentioned in "X.5.1." at the time when personal data is obtained. Besides, he/she must also be provided with the following:

1.5.2.1. Whether the provision of the personal data is a statutory or contractual requirement/obligation, or a requirement necessary to enter into a contract, as well as whether the individual is obliged to provide the personal data and any possible consequences of failing to provide the data.

1.5.3. In case the information was collected from a third party, the individual must be informed about the points mentioned in "X.5.1." as soon as possible, but at the latest within one month of obtaining it. He/She must also be provided with:

1.5.3.1. The types or categories of personal data which are to be processed;

1.5.3.2. The source the personal data originates from and whether it came from publicly accessible sources.

1.6. Rights of the Individuals

1.6.1. AIESEC in Pakistan must process all personal data based on the rights of the individuals, including

1.6.1.1. Right to be informed about the processing activities;

1.6.1.2. Right to access his/her personal data;

1.6.1.3. Right to rectification;

1.6.1.4. Right to object to (part of) the processing, including for direct marketing purposes;

1.6.1.5. Right to erasure ("right to be forgotten");

1.6.1.6. Right to restriction of processing;

1.6.1.7. Right to data portability;

1.6.1.8. Right to not be subject to automated decision-making (including profiling) in certain circumstances. In case it happens, the individual shall have the right to be informed, to express his/her point of view, to challenge the decision and to obtain human intervention;

1.6.1.9. Right to liability/compensation in case of violation of privacy rights, as well as to lodge a complaint with the appropriate supervisory authority.

1.6.2. AIESEC in Pakistan must set communication channel(s) and procedures so that the individual can enforce his/her rights within one month of the original request.

1.7. Data Security

1.7.1. AIESEC in Pakistan must take appropriate security measures against unlawful or unauthorised processing of personal data and against the accidental

or unlawful destruction, damage, loss, alteration, or unauthorised disclosure of or access to personal data transmitted, stored or otherwise processed.

1.7.2. Procedures and technologies must be in place to maintain the security of all personal data.

1.7.3. Personal data shall only be transferred to a data processor if there is a contract and if it agrees to comply with the procedures and policies and/or puts in place adequate measures itself.

1.7.4. AIESEC in Pakistan must maintain data security by protecting the confidentiality, integrity and availability of personal data, including, if possible, measures such as pseudonymisation.

1.8. Disclosure and Sharing of Personal Data

1.8.1. AIESEC in Pakistan may share personal data internally.

1.8.2. Personal data shall not be sold to externals nor handled by individuals outside AIESEC in Pakistan.

1.8.3. Personal data shall not be transferred to people or organisations situated in countries without adequate protection and without firstly having advised the individual. Transfers of data to other countries shall be subject to the requirements of the General Data Protection Regulation.

1.9. Documentation

1.9.1. AIESEC in Pakistan must keep records of the activities, being able to demonstrate compliance upon request.

1.9.2. AIESEC in Pakistan must follow the internal Data Protection Policy, the provisions of the General Data Protection Policy and the national/local laws regarding data protection.

1.9.3. The local entities of AIESEC in Pakistan are subject to the clauses focused on data protection and must abide by these rules,

2. National and Local Management of Data:

2.1. AIESEC in Pakistan and its affiliated committees may collect specific data from the members

2.1.1. The Member Committee may collect the data of the General Body Members via LCP or LCVP MXP of the respective LC.

2.1.2. In case the Member Committee wants to use the data of the General Body Members of an LC, such as to communicate with the members and provide data to the partners, the MC should discuss with the LCP and LCVP MXP to do so.